

SECOND AMENDED PETITION FOR ORDER CONFIRMING TRUST OWNERSHIP OF ASSETS

TENTATIVE RULING: The petition is GRANTED.

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Julianne Wurm v. James Pitkow et al

24CV000921

PLAINTIFF JULIANNE WURM’S MOTION FOR RELIEF UNDER CODE OF CIVIL PROCEDURE SECTION 473(b) FROM THE COURT’S MAY 21, 2026 ORDER ADOPTING THE TENTATIVE RULING ON PLAINTIFF’S MOTION TO TAX COSTS

TENTATIVE RULING: This matter is CONTINUED to July 31, 2026, at 8:30 a.m. in Dept. B to allow the moving party to provide sufficient notice of the motion.

There is no Proof of Service of Plaintiff’s motion on file, as required by Rules of Court, rule 3.1300, subdivision (c). In Opposition, Defendants claim the motion was served via electronic means on June 5, and only after Defendants’ counsel contacted Plaintiff’s counsel to serve the papers. Plaintiff implicitly concedes the foregoing by failing to file a Reply to the Opposition.

June 3 was the last day for service, by electronic means, of a notice and papers filed in support of a motion set for hearing on June 30. (See Code Civ. Proc., §§ 12c, subds. (a) and (b), 1005, subd. (b), and 1010.6, subd. (a)(3)(B).) Thus, the moving party failed to serve the notice and moving papers 18 court days before the hearing as required. Defendants do not waive the notice defect. As such, the Court is without jurisdiction to hear it. (*Diaz v. Prof. Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204-05 [“The court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question.”].)

The moving party is directed to (1) prepare an Amended Notice which contains the continued hearing date, as well as notice of the Court’s tentative ruling system as required by Local Rule 2.9, (2) provide timely service of the Amended Notice and moving papers to all other parties, and (3) file a proof of service pursuant to Rules of Court, rule 3.1300, subd. (c).

Defendants are granted leave to file and serve an Amended Opposition no later than July 20. Any Amended Opposition should be a complete and self-contained opposition and not simply an addendum to the opposition memorandum filed June 8 and shall comply with all procedural requirements for oppositions to motions.¹ Plaintiff is then granted leave to serve and file, no later than July 24, a Reply that complies with all procedural requirements for replies in support of motions.

¹ To be clear, if an Amended Opposition is filed, the Court will disregard the original June 8 Opposition.

[1] DEMURRER TO SECOND AMENDED COMPLAINT BY DEFENDANT
CARRINGTON MORTGAGE SERVICES, LLC

TENTATIVE RULING: The demurrer is SUSTAINED. Plaintiff is granted 10 calendar days' leave, from entry of the instant order, to amend the SAC. However, this leave is limited to stating a good claim for Breach of the Covenant of Good Faith and Fair Dealing unless Plaintiff requests oral argument, pursuant to Local Rule 2.9, and persuades the Court that there is a reasonable possibility that he can amend to state a good claim for Promissory Fraud and/or Intentional Misrepresentation.

A. PRELIMINARY MATTERS

Defendant Carrington Mortgage Services, LLC (Carrington) demurs, pursuant to Code of Civil Procedure 430.10, subdivision (e), to the Breach of Covenant of Good Faith and Fair Dealing (Second COA), Promissory Fraud, and Intentional Misrepresentation Causes of Action asserted by Plaintiff through the Second Amended Complaint (SAC).

Mr. Giglio filed the SAC following the Court's April 21, 2026, Minute Order (4/21/26 M.O.) sustaining, in part, Carrington's demurrer to the First Amended Complaint (FAC).

The instant action arises out of allegations of a declaration, by Carrington, of default, by Mr. Giglio, on a mortgage loan secured by his residence, and ensuing steps, by Carrington, towards foreclosure and trustee's sale. Pursuant to the allegations in the FAC, such foreclosure and trustee's sale were avoided, and the loan has been modified. (See *id.* at ¶¶ 36-37.) Mr. Giglio alleges that, nonetheless, "[a]s a . . . result of Carrington's conduct, including its false claims about its willingness to review Plaintiff's May 2025 loan modification application and provide him with one if the application showed he qualified, failure to provide Plaintiff for [sic] a loan modification until after filing his lawsuit and obtaining injunctive relief, failure to timely provide Plaintiff with a reinstatement quote until it was too late for him to reinstate, and threatening foreclosure and the loss of his primary residence when it was not allowed by law, Plaintiff suffered damages." (*Id.* at ¶ 38.)

B. LEGAL BACKGROUND

A complaint must contain "facts constituting the cause of action." (Code Civ. Proc., § 425.10, subd. (a)(1).) "The party against whom a complaint or cross-complaint has been filed may object, by demurrer . . . to the pleading on . . . grounds [that] . . . [t]he pleading does not state facts sufficient to constitute a cause of action" (Code Civ. Proc., § 430.10.) A demurrer on grounds that a plaintiff has failed to state a claim is treated as "admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Such a demurrer "'does not admit . . . facts impossible in